

24STCV26629 24STCV26629

County: los-angeles

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Case Number: 24STCV26629 Hearing Date: August 14, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

ANTONY WARD and JANICE WARD,

Plaintiffs,

v.

BLOCK DRUG COMPANY, et al.

Defendants.

Case No. 24STCV26629

Hearing Date: August 14, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PREMIER BRANDS OF AMERICA, INC.'S MOTION FOR
SUMMARY JUDGMENT

I.

Background

On October 11, 2024, Plaintiffs Antony and Janice Ward filed their complaint for personal injury alleging Mr. Ward developed malignant mesothelioma from direct exposure to asbestos-contaminated talcum powder products. On April 11, 2025, Plaintiff filed a Doe Amendment naming Defendant Premier Brands of America, Inc. ("Premier" or "Defendant") as Doe 11. Ms. Ward was dismissed from this action on May 13, 2025.

On February

9, 2026, Premier moved for summary judgment, arguing that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which Premier was responsible.

On July 17,

2026, Plaintiff opposed, arguing that Premier failed to meet its initial burden.

On August

6, 2026, Premier replied, reiterating that Plaintiff's factually devoid discovery responses support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against Premier.

Premier

failed to meet its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which Premier was responsible. Premier's motion for summary judgment is denied.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) The proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.

Where asbestos was not an intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated

with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

1. Defendant's

Burden: Factually Devoid

Premier

moves for summary judgment on the grounds that Plaintiff's factually devoid discovery responses support an inference that he lacks and cannot reasonably obtain evidence to support his claims against it. Specifically, Premier argues that Plaintiff's responses to standard interrogatories failed to mention Premier. (Motion at pp.4-5.) Additionally, Premier argues that Plaintiff “testified he has a general memory that he first used a powder product in 1987, has a general memory he last used a powder product in 2023, and has a general memory of having the same powder application routine; however, he could not provide specific dates of use for each of the various products, nor could he distinguish his product use by specific brand without speculating.” (Id. at pp.9-10.)

Premier

directs the court's attention to Plaintiff's response to standard interrogatory number 18. The interrogatory reads as follows:

“For

each product, material, compound, or equipment (collectively referred to as "product") which YOU contend contains ASBESTOS allegedly manufactured, produced, prepared, distributed, or sold by any defendant named in this action or by its predecessors, subsidiaries, subdivisions or affiliates, and which YOU worked with or around or otherwise claim to have been

exposed to at any time:

a.

Describe

each product as specifically as possible, including its trade name, product type, ASBESTOS content, color, packaging, and manufacturer, together with a detailed description of when and how YOU became aware of this information;

b.

If

not already identified in response to number 17(c) above, state the date(s) on which and places where YOU were exposed or YOUR best estimate thereof, together with the circumstances surrounding such exposure (i.e., whether YOU worked with it or were simply near an area where it was being used) to the product;

c.

Describe

all instructions, recommendations or warnings of any kind that accompanied the product, together with the LOCATION(s) where this information appeared (e.g., printed on tag, tag covering, instruction sheet accompanying product, etc.);

d.

State

the purpose for which YOU used the product;

e.

IDENTIFY

all SAFETY PRECAUTIONS in place during YOUR use of the product;

f.

IDENTIFY

(including name, address and telephone number) of YOUR supervisors and co-workers at the WORKSITE;

g.

IDENTIFY

all PERSONS with knowledge of facts supporting YOUR response to this interrogatory and its subparts, not already identified in these responses; and

h.

IDENTIFY

all DOCUMENTS which support YOUR response to this interrogatory and its subparts."

(Spaulding Decl.,
Exh. D at pp.18-19.)

Plaintiff

responded in relevant part as follows:

"Plaintiffs have not had the opportunity to complete their investigation nor to conduct any discovery and thus have not fully formed all contentions as to each defendant nor marshaled all facts, witnesses, and documents supporting their allegations. Subject to and without waiving the foregoing objections and reference to Plaintiffs employment records per C.C.P. § 2030.230, Plaintiff further responds: (a)-(h): See Exhibit A Plaintiff ANTONY WARD's Work/Exposure History Sheet, attached, incorporated by this reference. Plaintiffs also anticipate that this response may be augmented by the testimony given by Plaintiffs at deposition and/or trial and evidence obtained from Defendants and experts through discovery. Plaintiffs' investigation and discovery are continuing. Plaintiffs reserve the right to amend and/or supplement this response."

(Spaulding Decl.,
Exh. D at p.20.)

Premier also directs the court's attention to excerpts from Plaintiff's deposition. Plaintiff testified that no other individual witnessed his personal use of body powder products. (UMF No.10; Spaulding Decl., Exh. G at 383:13-384:5.) Plaintiff also testified that he could not recall when he used specific body powder products or distinguish his product use by brand without speculation. (UMF No. 11; Spaulding decl., Exh. G at 384:6-400:2, 406:13-407:2.)

In opposition, Plaintiff argues that standard interrogatories are not the defendant-specific "all facts" discovery required to shift the burden on summary judgment. (Opp. at p.4.) In reply, Premier argues that the standard interrogatories have the same effect as other written interrogatories. (Reply at p.2.)

Factually devoid discovery responses

may support an inference that a plaintiff lacks evidence to support his claims and shift the moving party's burden on a motion for summary judgment. (Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 101, citing Scheiding v. Dinwiddie Const. Co. (1999) 69 Cal.App.4th 64, 81.) "If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses." (Andrews, supra, 138 Cal.App.4th at p.107, citing Aguilar, supra, 25 Cal.4th at p.855.) Interrogatories are comprehensive when they are designed to elicit all the evidence a plaintiff has to support their contention that a defendant is liable for his injuries. (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1442.)

Here, Plaintiff's responses to standard interrogatories are insufficient to support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against Premier. As Plaintiff points out, the standard interrogatories are not specific to any particular defendant. Although standard interrogatory 18 requests that Plaintiff describe each product at issue and provide details such as the product's asbestos content, color, and other details, the interrogatory does not request that Plaintiff state all facts supporting his contention that each defendant is liable for his injuries. The standard interrogatories are therefore not designed to elicit all the evidence Plaintiff has to support his claims against Premier.

Additionally,

Plaintiff responded to the standard interrogatories in May 2025, seven months after filing the complaint and less than one month after naming Premier as a Doe 11 to this action. Plaintiff's response stated that Plaintiff was in the process of conducting discovery and had not "fully formed all contentions as to each defendant nor marshaled all facts, witnesses, and documents supporting" his allegations. (Spaulding Decl., Exh. D at p.20.) It would be unreasonable to infer from Plaintiff's responses to standard interrogatories served so early in litigation that Plaintiff cannot reasonably obtain evidence to support his claims against Premier.

Premier

fails to meet its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against it. Accordingly, the motion for summary judgment is denied.

III.

Conclusion

Premier failed to meet its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which Premier was responsible. Premier's motion for summary judgment is denied.

Plaintiff to give notice.